

PRESCOTT VANE LLP
Office of the General Counsel
One Oliver Center, 40th Floor, Pittsburgh, Pennsylvania 15222

January 21, 2025

BY EMAIL AND CERTIFIED MAIL

Alan Garvey, Esq.
Garvey Strom LLP
1650 Market Street, 38th Floor
Philadelphia, Pennsylvania 19103

Re: Torvane Industrial Group, Inc. / Prescott Vane LLP —Response to Your Letter of November 14, 2024

Dear Mr. Garvey:

I write on behalf of Prescott Vane LLP in response to your letter of November 14, 2024. The claim it presents rests on a single factual premise: that this firm was engaged on the warranty claim against Brandt Thermal Systems, Inc. and stood silent while it expired. That premise is false, and it is refuted by your client's own written words. The documents are produced with this letter.

1. The firm identified the claim and advised on it in writing. On May 17, 2011, the firm's assessment identified the Brandt warranty claim and analyzed the applicable limitations periods, concluding that the claim should be treated as expiring in the first quarter of 2014 (Exhibit A-5 and its attached memorandum). On May 19, 2011, Arthur Pellum recommended to Torvane's General Counsel, in writing, that the claim be preserved, at minimum by a tolling agreement (Exhibit A-6).

2. The client elected not to assert the claim, after advice, and confirmed it in writing. On June 8, 2011, Torvane's General Counsel advised Mr. Pellum that the company's CEO and operations committee had decided not to assert the claim, for commercial reasons involving the company's sole-source supply relationship with Brandt (Exhibit A-8). On **June 9, 2011**, she confirmed the decision in writing, by email and by signed letter on Torvane letterhead (Exhibit A-9): the engagement under Matter 2011-0284 "is limited to Torvane's claims against Ridgeline Constructors, Inc."; the Brandt claim "is expressly outside the scope of your engagement," with the firm "not asked to take any step to evaluate, preserve, or pursue it"; the company was "advised . . . orally and in writing, of the limitations consequences of this election, including that the claim is likely to become time-barred," and "accepts those consequences"; and the confirmation "is not limited to any period and stands unless I withdraw it in writing." It was never withdrawn. This is a limitation of the scope of representation with the client's informed consent, confirmed in writing by the client's chief legal officer, under Rule 1.2(c) of the Pennsylvania Rules of Professional Conduct.

3. Your client applied the limitation itself, twenty-eight months later. On October 17, 2013, in connection with the firm's response to Caulfield Roth's FY2013 audit inquiry, the same General Counsel directed that a precautionary reference to the Brandt matter be removed from the firm's draft response —

"as I confirmed to Arthur in writing on June 9, 2011, the Brandt Thermal warranty matter is expressly outside Prescott Vane's engagement"(Exhibit B-3). The final response of October 18, 2013 described the Ridgeline arbitration only (Exhibit B-4). Your client's own general counsel enforced the limitation against this firm's draft, citing it by date, at a time when no dispute existed.

4. The production. Produced herewith: the **eleven messages** of the 2011 matter sequence recovered from the firm's mail journal archive, with all attachments, including the signed confirmation letter (Exhibits A-1 through A-11), and the October 2013 audit-response correspondence (Exhibits B-1 through B-4). The messages are journal captures made at transmission, hash-verified at export; the verification manifest is available for inspection on reasonable notice.

5. Demand. The record shows the firm gave precisely the advice your letter says it never gave, and was instructed in writing to stand down by the client after that advice. We invite withdrawal of the claim within thirty days. Failing that, the firm will respond formally through counsel and will pursue every remedy available in respect of a claim maintained against this record.

Very truly yours,

/s/ Evelyn Stanhope

Evelyn Stanhope
General Counsel
Prescott Vane LLP

cc: D. Wachter, Keystone Counsel Mutual (Claim File 2024-PL-0771)